

does not herein determine the amount of reasonable attorney fees and costs to which it is entitled, as Enterprise states that it intends to bring a separately noticed motion thereon.

PROBATE CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

**In the Matter of Irrevocable Special Needs Trust
For Jamie J. Cooper, Dated June 30, 2009**

21PR000283

SPECIAL NEEDS TRUST – PETITION FOR APPROVAL OF SECOND ACCOUNT, APPROVAL OF ATTORNEY’S FEES, APPROVAL OF TRUSTEES’ FEES; AND FOR SETTLEMENT THEREOF [Filed 4/9/26]

TENTATIVE RULING: The matter is CONTINUED to August 21, 2026, at 8:30 a.m. in Dept. B to allow Petitioners to remedy the following issues:

- (1) The declaration attached as Exhibit C to the Petition is missing pages 1 and 3;
- (2) The Petition and Proposed Order do not include the three statements under Probate Code section 3604, subdivision (b), which the Court must find to continue the Trust.

Petitioners to provide notice of the continued hearing to all persons entitled thereto.

CIVIL LAW & MOTION CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

Lesia K. Ward et al v. Mani NVR Napa LLC et al

23CV000033

MOTION BY DEFENDANT CHEM-AQUA, INC. TO ENFORCE SETTLEMENT AGREEMENT

TENTATIVE RULING: The motion is DENIED.

Defendant CHEM-AQUA, INC. (Chem-Aqua) moves, pursuant to California Code of Civil Procedure section 644.6, for an order granting its Motion to Enforce Settlement Agreement.

“If parties to pending litigation stipulate . . . orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.” (Code Civ. Proc., § 664.6, subd. (a) (Section 664.6).)

On April 29, 2026, Chem-Aqua, co-defendant Homeyer Consulting Services, Inc. (Homeyer) and Plaintiffs stipulated orally before the Court for settlement of Plaintiffs claims against Chem-Aqua and Homeyer. (See Declaration of Lynn M. Dean, Exh. 1 at 1384:7, *et seq*

(Dean Decl.).) The stipulated settlement contains eight enumerated terms. None of these relate to an agreement, by Plaintiff, to forego making any disparaging comments about Chem-Aqua. One of the terms provided that “[t]he parties agree to execute a full and final settlement agreement in the near future and the Court shall retain jurisdiction pursuant to CCP 664.6.” (*Id.* at 1385:18-20.)

“Chem-Aqua's position is that non-disparagement is a standard term of the full and final agreement the parties contemplated, and that it is part of the settlement.” (Support Memo at 2:17-18.) “Enforcing the non-disparagement provision does not ask the Court to add a new term to the parties' bargain. It asks the Court to recognize a term the parties already agreed upon as part of the ‘full and final’ agreement they expressly contemplated.” (Support Memo at 5:24-27.)

The Court disagrees. As noted above, the stipulated agreement recited into the record contains no mention of a non-disparagement term. Moreover, Chem-Aqua fails to provide the Court with any evidence suggesting that Plaintiffs ever agreed to such term. The Court finds no merit in Chem-Aqua's argument that, because Plaintiffs agreed to a non-disparagement clause in other agreements, their agreement to such clause in *this* agreement may be inferred.

“‘The statutory procedure for enforcing settlement agreements under section 664.6 is not exclusive. It is merely an expeditious, valid alternative statutorily created.’ [Citation.] ‘Even though it is not exclusive, [section 664.6] is intended to provide a means for enforcing an agreement that requires nothing more than a single motion.’ [Citation.] ‘ ‘Although a judge hearing a section 664.6 motion may receive evidence, determine disputed facts, and enter the terms of a settlement agreement as a judgment [citations], nothing in section 664.6 authorizes a judge to create the material terms of a settlement, as opposed to deciding what terms the parties themselves have previously agreed upon.’ ’ [Citation.] As such, ‘[t]he power of the trial court under Code of Civil Procedure section 664.6 . . . is extremely limited. [¶] . . . The court is powerless to impose on the parties more restrictive or less restrictive or different terms than those contained in their settlement agreement.’ [Citation.]” (*Machado v. Myers* (2019) 39 Cal.App.5th 779, 790.)

Based on the foregoing, the Motion is DENIED.

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Whitney Crow v. Puneet Singh et al

23CV001513

[1] MOTION TO STRIKE ISAAC AL GHAZALI'S CROSS COMPLAINT, OR PORTIONS THEREOF

TENTATIVE RULING: The motion is GRANTED IN PART.

Cross-Defendants Puneet Singh, Eshwaramma, Inc., Laxami, Inc., and Durga Ma Inc. move, pursuant to Code of Civil Procedure sections 435 and 436, for an order striking, from the Cross-Complaint filed on May 11, 2026, by Isaac Al Ghazali (Cross-Complaint), Paragraphs 8 and 9 and the Prayer for Relief at Paragraph 10(d), as well as “[a]ny other allegations, averments,